

Tentative Rulings for September 17, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2501834	ARAIZA VS CAMARILLO	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling: Overrule the demurrer. Plaintiff/Cross-Defendant to file an Answer within 30 days. Continue the CMC to March 10, 2027, and set an OSC on the same day for POS on Dora's Cross-Complaint, with sanctions not to exceed \$1,500 and/or striking the pleading.

The cross-complaint alleges: "Carolina is one of the persons holding record title to the Property." (§6.) There are no other allegations of other record owners. While vague, Plaintiff did not request judicial notice of any grant deeds demonstrating other owners. The other allegations Plaintiff points to relate specifically to Carolina and Plaintiff. (§20-21, 26-27, 33, 38-40.) Without any other allegations or judicially noticeable materials, it is not clear for purposes of demurrer that there are any other record owners.

2.

CASE #	CASE NAME	HEARING NAME
CVME2507304	BREWER V. CGB	CMC AND OSC

Tentative Ruling: Grant Plaintiff's request to dismiss CGB Custom Builders Inc. Continue the CMC and OSC to April 14, 2027, for Plaintiff to serve the statement of damages on Christopher Gronau, request a default and submit their default packet.

3.

CASE #	CASE NAME	HEARING NAME
CVME2507504	LAKEVIEW LOAN V. EDWARDS	DEFAULT PROVE UP

Tentative Ruling: Continue to December 29, 2026, at 10:00 a.m. –All parties may appear by Zoom.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506700	ANZOATEGUI V. A.M.A. PLASTICS	COMPLEX CMC

Tentative Ruling: Set a post-mediation status conference on **April 27, 2027**— 30 days after the March 15, 2027 mediation.

5.

CASE #	CASE NAME	HEARING NAME
CVSW2305420	PENSERGA VS CITY OF TEMECULA	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON 2 ND AMENDED COMPLAINT

Tentative Ruling: Deny the motion for judgment.

June 24, 2026 Hearing. The Court permitted supplemental briefs on its tentative ruling and related issues. (CCP 437c (h).) Both parties filed briefs. In its supplemental briefing, Plaintiff argues the core issue is whether she could perform her job's essential functions with reasonable accommodation, citing evidence she fully performed 11 of 14 duties and partially performed the

rest. Relying on *Wallace v. County of Stanislaus* (2016) 245 Cal.App.4th 109, 123, Plaintiff contends *McDonnell Douglas* does not apply because she presents direct evidence of the City's motivation for the adverse employment action. City concedes *McDonnell Douglas* is inapplicable when the adverse action is directly motivated by disability. However, City maintains Plaintiff cannot show she could perform the job's essential duties with or without reasonable accommodation.

Evidentiary Objections: As to Plaintiff's objections: Overrule Nos. 1 & 3 and sustain No. 2 as hearsay. As to City's objections: Overrule objections Nos. 1-11, 14, 18, 19, 21, 22, 23, and 57. And Sustain objections Nos. 12, 13, 15, 16, 17, 20, 24 – 56, and 37.

1st Cause of Action: Discrimination in Violation of FEHA: Pursuant to the Fair Employment and Housing Act ("FEHA"), an employer may not refuse to hire or employ a person because of a physical or mental disability or medical condition. (Gov. Code, § 12940, subd. (a).) FEHA broadly protects individuals with physical disabilities that limit a major life activity, including those whom an employer erroneously or mistakenly regards as having such a condition. (Gov. Code, §§ 12926, 12926.1; *Wallace, supra*, 245 Cal.App.4th at 134.) The central question in a disability-discrimination claim is therefore whether the employee's actual or perceived disability motivated the adverse employment action.

Generally, employment discrimination claims are analyzed under the three-part *McDonnell Douglas* framework: the plaintiff must establish a prima facie case; the employer must articulate a legitimate, nondiscriminatory reason for its action; and the plaintiff must show that reason is pretextual. (*Harris v. City of Santa Monica* (2013) 56 Cal.App.4th 203; *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354.) The framework is principally designed for cases in which discriminatory intent must be inferred from circumstantial evidence. (*Guz, supra*, 24 Cal.4th at 354.)

Disability cases, however, may proceed differently when direct evidence establishes that the employee's actual or perceived disability played a role in the employment decision. In that circumstance, the *McDonnell Douglas* framework is unnecessary. (*Glynn v. Superior Court* (2019) 42 Cal.App.5th 47, 53; *Wallace v. County of Stanislaus* (2009) 245 Cal.App.4th 109, 123.) Instead, the focus is on the disability itself—whether the employer knew or perceived the employee as disabled, whether the disability was a substantial motivating reason for the adverse action, and whether the employee could perform the essential job functions with or without reasonable accommodation. (*Wallace, supra*, 245 Cal.App.4th at 123, 129; *Green v. State of California* (2007) 42 Cal.4th 254, 262.) As *Wallace* explains, courts should determine whether "there is direct evidence that the motive for the employer's conduct was related to the employee's physical or mental condition." (*Wallace, supra*, 245 Cal.App.4th at 123.)

Accordingly, the elements of a disparate-treatment disability claim are that the plaintiff "(1) suffered from a disability or was regarded as suffering from a disability, (2) could perform the essential duties of a job with or without reasonable accommodations, and (3) was subjected to an adverse employment action because of the disability or perceived disability." (*Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 31-38.) Thus, where direct evidence connects the adverse action to disability, the dispositive inquiry is not whether the employer can articulate a nondiscriminatory explanation, but whether Plaintiff's actual or perceived disability

was a substantial motivating reason for the adverse action and whether she could perform the job with or without reasonable accommodation.

Although Plaintiff correctly emphasizes in her supplemental opposition—and City concedes in its supplemental reply—that *McDonnell Douglas* is unnecessary where direct evidence establishes disability discrimination, Plaintiff’s initial opposition nevertheless conflates the two frameworks in arguing that triable issues of material fact exist.

Disability. It is undisputed that City hired Plaintiff on May 9, 2019 as an Office Assignment I. (City UF #1.) Her duties included drafting and reviewing documents, data entry, maintaining records and files, preparing reports, scheduling meetings and events, managing the filing system, sorting mail, printing and photocopying, ordering and maintaining inventory, and assisting with software operation. (CAOE, Exh. 5, Office Aid I Job Description.)

In April 2020, Plaintiff sought treatment for pain in her right thumb from stapling and removing staples. (PUF #3.) She provided a doctor’s note restricting her from repeated stapling and staple removal for six weeks, which she gave to her supervisor, Fitzpatrick. (PUF #3-5.) Fitzpatrick instructed her to rest her hands as needed. (PUF #6.) Plaintiff subsequently received the highest “exception” rating in all categories for her 2019-2020 and 2020-2021 evaluations, along with a merit increase. (PUF #7.) In November 2020, Plaintiff provided another medical note restricting repeated stapling, lifting over 5 lbs, and strenuous or repetitive hand motion for four weeks. (PUF #8-10; PAOE Exh. 10.) Fitzpatrick again advised her to rest as needed. (PUF #9.) Thus, it is undisputed that Plaintiff had a physical disability as defined by FEHA.

Plaintiff could perform her essential job duties with or without reasonable accommodation. City claims it had legitimate non-discriminatory reasons for her termination. On November 13, 2020, City authorized a leave of absence for Plaintiff, stating it could not accommodate her restrictions in the Records Department. (Fitzpatrick Decl., ¶7; PUF #12, 14.) Plaintiff did not request or initiate any leave. (PUF #15.) When she returned in April 2021, her restrictions included no lifting over 15 pounds, no stapling or removing staples, no clipping or unclipping documents, and other limits on fine hand motions, all discussed with Fitzpatrick. (UF #12, 36; Fitzpatrick Decl., ¶8.) City accommodated her by placing her on modified duty. (UF #11.) On May 26, 2021, City finalized the Interactive Process Meeting (“IPM”) document, reflecting her restriction to “limited use of thumbs,” and stating she would continue to log and scan reports. Both Plaintiff and Fitzpatrick signed the report. City also provided an electric stapler. (UF #40.)

On February 1, 2022, City’s workers’ compensation administrator received a Maximum Medical Improvement (“MMI”) report from Dr. Perez, stating Plaintiff is permanently partially disabled: limited use of both hands, limited forceful gripping and squeezing, no lifting over 15 pounds, limited pulling or pushing over 15 pounds, and possible use of a splint for her right thumb. (UF #16, 44.) At the February 7, 2022 IP meeting, City advised Plaintiff that she could seek a Qualified Medical Evaluator’s opinion if she disagreed with her permanent restrictions. (UF #18-19, 45-46.) City said it would look for alternative positions for Plaintiff but continued to provide the same accommodation. (UF #20, 22, 60.) On February 16, 2022, Dr. Perez issued a supplemental report listing Plaintiff’s permanent restrictions. Plaintiff confirmed by email that she agreed with these restrictions. (UF #25, 51.)

This evidence shows Plaintiff could perform her job with accommodations, creating triable issues of material fact. Reasonable accommodations may include making facilities accessible,

job restructuring, modified schedules, reassignment to a vacant position, or modification of equipment, exams, training, or policies. (Gov. Code, § 12926(p).)

City argues it is not required to change essential job functions. “Where a quality or quantity standard is an essential function, an employer is not required to lower standards as an accommodation but must accommodate an employee so they can meet those standards.” (Cal. Code Regs. Tit. 2, § 11068(b).) However, City accommodated Plaintiff and does not explain why it could not continue. The permanent restrictions were essentially the same as the temporary restrictions under which Plaintiff performed her job. City concedes it kept providing the same accommodations while searching for alternative positions. (UF #20, 22, 60.)

Substantial motivating reason for Plaintiff’s termination. An employer treats an employee differently “because of” a disability when the disability is a substantial motivating reason for an adverse employment action. (*Wallace*, 245 Cal.App.4th at 128.)

City concedes that, based on Dr. Perez’s supplemental report, it was determined Plaintiff could not perform the essential functions of Office Aid I with or without accommodation. (UF #26, 52.) On March 3, 2022, City sent Plaintiff a Notice of Intent to Medically Separate Because of Inability to Reasonably Accommodate. (UF #62.)

City’s claim of legitimate non-discriminatory reasons for termination was expressly rejected in *Wallace*, 245 Cal.App.4th at 133-134. The facts in *Wallace* are analogous: there, a deputy sheriff was placed on unpaid leave due to the employer’s mistaken belief he could not safely perform his job, even with accommodation. He had received above-average performance reviews as a bailiff. The employer claimed it acted lawfully because plaintiff could not perform essential duties safely, but the jury found this was a mistaken belief. The court held that California law prohibits employers from relying on mistaken beliefs about an employee’s ability to perform, and that when an employee can work with reasonable accommodation other than leave, an employer may not require leave. (Cal. Code Regs., tit. 2, § 11068(c).) The court found the employer’s perception of the plaintiff’s condition was a substantial motivating reason for placing him on leave. (*Id.* at 134.) Here, Dr. Perez’s supplemental report states that Plaintiff’s continued assignment as Office Aide I did not pose a significant risk to her health or safety or that of others. (CAOE, Exh. 25, p. 5.) Under *Wallace*, this evidence creates triable issues of material fact regarding disability discrimination.

2nd Cause of Action: Failure to Provide Reasonable Accommodation: Employers must reasonably accommodate employees’ known disabilities so they can perform a position’s essential functions, unless doing so would cause undue hardship to the employer. (Gov. Code, § 12940, subd. (m); *Fisher v. Superior Court* (1986) 177 Cal.App.3d 779, 783.) An employer is liable for failure to accommodate if an employee requests a specific, available reasonable accommodation that is not provided. (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 938.)

A failure-to-accommodate claim requires: (1) the plaintiff has a disability under FEHA; (2) the plaintiff is qualified to perform the essential functions of the position; and (3) the employer failed to reasonably accommodate the plaintiff’s disability. (*Lui v. City and County of San Francisco* (2012) 211 Cal.App.4th 962, 970.)

An employer can only prevail on summary judgment for a failure to accommodate claim by showing: (1) reasonable accommodation was offered and refused; (2) no vacant position existed that the employee was qualified to perform with or without accommodation; or (3) the employer did everything possible to find a reasonable accommodation, but the interactive process broke down due to the employee's lack of good faith. (*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 263.)

As discussed above, evidence shows Plaintiff has a disability under FEHA and is qualified to perform the position's essential functions. Plaintiff remained willing and able to work despite her injury, and her work restrictions became permanent in February 2022. (UF #16.)

City claims it accommodated Plaintiff's temporary restrictions, but that accommodating her permanent restrictions would have required eliminating essential job duties and creating a new position. City argues that employers are not required to remove essential functions as a reasonable accommodation, citing *Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359. In *Nealy*, after a series of workplace injuries and accommodations, the court found the city was not obligated to eliminate essential job functions or create a new position for the employee. (*Id.* at 365-375.)

Here, City allowed Plaintiff to work with modified restrictions until her restrictions became permanent. (UF #16, 44.) The permanent restrictions were essentially the same as the temporary ones, except Plaintiff could now lift more weight. (PAOE, Exhs. 10, 11; CAO, Exh. 25.) Reasonable accommodation can include altering when or how an essential function is performed. (Cal. Code Regs., tit. 2, § 11065, subd. (p)(2)(G).) City does not adequately explain why it could not continue to provide this accommodation, particularly since Dr. Perez's supplemental report allowed Plaintiff to lift more weight.

City contends it could not offer indefinite modified duty, as this would effectively create a new light-duty Office Aide position for Plaintiff. City relies on *Raine v. City of Burbank* (2006) 135 Cal.App.4th 1215, where the court held employers are not required to convert a temporary light-duty position into a permanent one. In *Raine*, a police officer accommodated for six years was deemed unable to perform essential patrol functions, and the court found he was not entitled to keep the temporary position permanently. (*Id.* at 1218, 1223-1224.)

However, unlike *Raine*, here, Dr. Perez found that Plaintiff's continued assignment as Office Aide I did not pose a significant risk of harm to herself or others. (CAOE, Exh. 25, pg. 5, ¶6.)

City also claims it could not allow Plaintiff another leave of absence, but there is no evidence Plaintiff requested one when her restrictions became permanent. Additionally, California law prohibits employers from requiring leave when an employee can work with reasonable accommodation. (Cal. Code Regs., tit. 2, § 11068, subd. (c); *Wallace, supra*, 245 Cal.App.4th at 133-134.)

City argues that under ADA case law, employers are not required to grant accommodations that make other employees work harder or longer. However, Plaintiff testified that she did not require help from co-workers and, in fact, assisted others while performing her own workload. (PAOE, Plaintiff Decl., ¶11.) She also testified that removing staples was a minimal part of her work and she used an electric stapler. (*Id.* at ¶12.) Michele Linse, a former Office Aide I, testified she never saw Plaintiff ask anyone to do her work and that most materials weighed less than 15

pounds. (PAOE, Linse Decl., ¶2, ¶8, ¶10.) These are triable issues of material fact as to whether City failed to provide reasonable accommodations.

3rd Cause of Action: Failure to Prevent Discrimination, Harassment, and Retaliation:

Government Code section 12940, subdivision (k) establishes a distinct, actionable tort for failing to take reasonable steps to prevent discrimination and harassment. The core elements are duty of care, breach, causation, and damages. (See *Trujillo v. North County Transit District* (1998) 63 Cal.App.4th 280, 289.) As a general rule, there can be no failure to prevent if there is no underlying claim. (*Id.* at 284.) Because the underlying claims survive, this claim also survives.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2403508	FORTUNA VS VAN DAELE HOMES, LLC	DEMURRER AND MOTION TO STRIKE 3 RD AMENDED COMPLAINT

Tentative Ruling: Grant the requests for judicial notice. Overrule the demurrer. Deny the motion to strike. Defendants are ordered to file their Answer within 30 days. Grant the RJN as to the TAC and of the January 9, 2026 Minute Order. (Evid. Code, § 452(d).)

Seventh Cause of Action For Breach of Contract: Plaintiffs allege Defendants breached the Easement and Construction Agreement by installing On-Site Sewer Improvements on the Highpointe Property that cannot serve the Franch Valley Acre's (FVA) Property as mapped. Plaintiffs contend: (1) the installed line's raised invert and reduced diameter make it inadequate to serve planned FVA residences, forcing Plaintiffs to raise site elevations or install a lift station (TAC ¶¶ 23, 28, 30, 31, 33, 41); (2) in 2019, Defendants revised the 2018 shared gravity concept, raising the invert at Koon Street seven-to-eight feet and reducing the offsite line from 15 to 8 inches (¶¶ 30, 31, 34, 126, 127, 128); (3) had Defendants shared revised plans, EMWD comments, and sought FVA's written approval as required by Sections 1.1(b) and 1.1(d), FVA could have insisted on a compatible design and avoided extra costs (¶¶ 25, 32, 33, 34, 47, 51, 125, 127, 128, 129, 136–138, 146–150); and (4) the installed design is not materially consistent with the FVA tentative tract map (TTM 36722) as required by Section 1.1(b) due to raised invert and reduced diameter (¶¶ 24, 27, 30, 31, 33, 34, 41, 46, 47, 48, 125, 128, 129, 136–138, 146–150). Plaintiffs plead pre-assignment liability against Highpointe and post-assignment liability against Forestar and D.R. Horton as assignees (¶¶ 26, 35, 128, 129)

The demurrer raises a contract interpretation issue. Because the contract language is reasonably susceptible to Plaintiffs' construction, the court cannot decide between competing interpretations at the pleading stage. Extrinsic evidence is admissible to show a reasonable meaning. The Agreement requires On-Site Sewer Improvements to provide adequate capacity for all residences on both the Highpointe and FVA Properties. Plaintiffs interpret this as requiring functional service—FVA's lots must be able to physically connect and use the system by gravity, not just have volumetric pipe capacity at an unusable elevation. This reading is reasonable and cannot be rejected now.

Section 1.1(b) of the Easement Agreement requires plans to be materially consistent with the other party's tentative map and meet all Governmental Agency requirements—two separate obligations. The “and” cannot be ignored. Contracts must be interpreted to give effect to all provisions and the mutual intent of the parties. Defendants' view that EMWD approval alone suffices renders the “materially consistent” requirement meaningless, which courts avoid. Where

two contract interpretations exist, the reasonable, fair, and just one should be adopted, especially at the demurrer stage when allegations are taken as true.

Defendants argue Section 2.3's cost-allocation structure eliminates any depth obligation, but the text does not support this. Section 2.3 allows for agency-required depth and cost-sharing if required, but does not permit Defendants to install the system at any depth, ignoring FVA's TTM or service capability. The provision addresses cost allocation, not performance obligations set elsewhere in the Agreement.

Section 1.1(d)'s material-modification approval supports Plaintiffs. The TAC alleges Defendants materially altered the sewer by raising the invert elevation, defeating gravity service to FVA. Whether this requires advance delivery and approval is a factual question not resolvable on demurrer when Plaintiffs have pled supporting facts.

The TAC alleges Defendants: (1) raised the invert elevation, defeating service to FVA's mapped lots; (2) failed to deliver material modifications for approval; and (3) installed a system materially inconsistent with FVA's Tentative Tract Map. Taken as true and viewed in Plaintiffs' favor, these allegations state a breach of contract claim.

Eighth Cause of Action for Breach of Implied Covenant: Defendant contends that this claim exceeds both the express terms of the Agreement and the parties' legitimate expectations. However, the implied covenant claim is properly pleaded because it is derivative of and supplemental to the breach of contract claim. If the Agreement required functional service and material consistency, Defendants' alleged use of discretionary processing to frustrate those contractual benefits—and to exclude FVA from required approval processes—adequately states a claim for breach of the implied covenant.

Ninth Cause of Action for Declaratory Relief: Defendants contend that Plaintiffs fail to state a valid claim for declaratory relief because the claim is entirely derivative of their breach of contract claim and concerns only alleged past wrongs. However, "a party may plead in the alternative and may make inconsistent allegations." (*Third Eye Blind, Inc. v. Near North Entertainment Ins. Services, LLC* (2005) 127 Cal.App.4th 1311, 1323.) Further, where the precise facts or the legal nature of the rights and liabilities are uncertain, alternative and even inconsistent theories may be pleaded. (*Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 29.)

The controversy is ongoing, not merely historical. The recorded Easement Agreement creates covenants, benefits, and burdens that run with the land and bind successors and assigns. (TAC, ¶ 29.) Plaintiffs seek declarations regarding continuing obligations under this land-burdening instrument: whether the current configuration satisfies the Agreement, whether Defendants must take corrective action or compensate FVA for increased costs, and how responsibility is allocated among the original party (Highpointe) and its alleged successors or assigns (Forestar and D.R. Horton).

Motion to Strike: While Defendants may disagree with the allegations in the TAC, such disagreement alone does not constitute a valid basis for striking allegations from the complaint.

7.

CASE #	CASE NAME	HEARING NAME
CVSW240367	SAWS V. TEMECULA	OSC

Tentative Ruling: Strike Judge Rhode's August 4, 2026 Order in light of Mr. Kirit "Ken" Pansuria having been Dismissed from this Action on March 21, 2025.